

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Team # 3	CCRB Case #: 201406133	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/20/2014 11:00 AM	Location of Incident: § 87(2)(b)		18 Mo. SOL 12/20/2015		Precinct: 112
Date/Time CV Reported Fri, 06/20/2014 12:41 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/20/2014 12:41 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Dewan Persaud	07832	949477	112 PCT
2. POM Chintankum Patel	24534	951018	112 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Dewan Persaud	Abuse: PO Dewan Persaud stopped § 87(2)(b)	A . Exonerated
B . POM Chintankum Patel	Abuse: PO Chintankum Patel stopped § 87(2)(b)	B . Exonerated
C . POM Chintankum Patel	Abuse: PO Chintankum Patel searched § 87(2)(b)	C . Substantiated
D . POM Chintankum Patel	Discourtesy: PO Chintankum Patel acted rudely toward § 87(2)(b)	D . Unsubstantiated

Case Summary

On June 20, 2014, § 87(2)(b) filed this complaint via phone with the Civilian Complaint Review Board.

On June 20, 2014, § 87(2)(b) called 911 in regards to a complaint of unleashed dogs in the area. PO Chinkantum Patel and PO Dewan Persaud responded to the 911 call and was approached by § 87(2)(b). Moments later § 87(2)(b) approached the group. The following allegations resulted because of this interaction:

- **Allegation A- Abuse of Authority- PO Dewan Persaud stopped** § 87(2)(b)
- **Allegation B- Abuse of Authority- PO Chintankum Patel stopped** § 87(2)(b)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
It is therefore recommended that **Allegations A and B** be closed as ***exonerated***.
- **Allegation C- Abuse of Authority- PO Chintankum Patel searched** § 87(2)(b)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
It is therefore recommended that **Allegation C** be closed as ***substantiated***.
- **Allegation D- Discourtesy- PO Chinkantum Patel acted rudely towards** § 87(2)(b)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
It is therefore recommended that **Allegation D** be closed as ***unsubstantiated***.

On July 3, 2014, during his sworn statement, § 87(2)(b) rejected mediation as an alternative means of resolving this complaint.

Results of Investigation

Civilian Statements

Complainant/ Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b), white man, with gray hair, a balding head, and brown eyes.

CCRB Statement:

§ 87(2)(b) appeared at the CCRB on July 3, 2014 and provided the following statement (encl 5A-D):

On June 20, 2014, § 87(2)(b) was attacked by a neighbor's dog in the vicinity of § 87(2)(b). § 87(2)(b) called 911 and reported the incident, leaving his call back number with the 911 operator. After waiting approximately 20 minutes for officers to arrive, § 87(2)(b) went to his home, located at § 87(2)(b).

While at his home, at approximately 11:25 a.m., he looked out of his window and noticed two officers get out of a marked vehicle and walk onto a driveway located at the side of his building.

§ 87(2)(b) exited his apartment and walked to the side of the building where the officers were located. He wrote down the officers' vehicle number (3421) and approached one of the officers. Immediately after, an officer, identified by § 87(2)(b) from his nameplate and shield number to be PO Persaud, grabbed § 87(2)(b) by his right arm. PO Persaud then placed § 87(2)(b)'s arm behind his back and placed § 87(2)(b) face-first against the garage door, with § 87(2)(b)'s hands against it. § 87(2)(b) asked the officers in English to get him a Polish translator, but the officers did not respond. PO Patel then ordered § 87(2)(b) to spread his legs, and § 87(2)(b) complied. PO Patel then entered § 87(2)(b)'s pockets, taking out his keys and wallet and throwing them all on the floor. Both officers told him to not move.

§ 87(2)(b) stood against the garage door for approximately 50 minutes. During the incident, § 87(2)(b) observed the owner of the dog that attacked him speaking and laughing with the officers. Then an officer, § 87(2)(b) could not see who, picked up § 87(2)(b)'s wallet, took out his identification, and wrote something down. § 87(2)(b) did not know what he was writing or where he was writing it.

PO Patel then approached § 87(2)(b) threw his wallet on the ground amongst the rest of his property, and ordered him to pick up his stuff. § 87(2)(b) did and the officers left the scene. Upon questioning, § 87(2)(b) stated that he installed personal security cameras on the side of his building, however the cameras were not operating at the time of this incident.

Witness: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b) Hispanic man with black hair and brown eyes.
- § 87(2)(b) is the owner of the dog that allegedly attacked § 87(2)(b)

CCRB Statement:

On August 21, 2014 § 87(2)(b) appeared at the CCRB and provided the following statement (encl. 6A-D):

On June 20, 2014, § 87(2)(b) approached § 87(2)(b) who was walking his dog on a leash. § 87(2)(b) stated to § 87(2)(b) "I told you I don't want to see the dogs in this area." § 87(2)(b) responded to § 87(2)(b) "Get lost." In response, § 87(2)(b) stepped towards § 87(2)(b) and started yelling at him, while he held a hammer in his hand, raising it in a threatening manner. § 87(2)(b) took a step back from § 87(2)(b) and stated that he was going to call the police. However, § 87(2)(b) did not have his cell phone on him and § 87(2)(b) stated that he would call the police instead. § 87(2)(b) went into his apartment at § 87(2)(b), and several minutes later a marked police vehicle arrived with two uniformed officers. § 87(2)(b) had not yet exited his apartment, but § 87(2)(b) approached the officers and explained that § 87(2)(b) was threatening him with a hammer and that he regularly harasses him when he is walking his dogs. One of the officers asked § 87(2)(b) for his identification which § 87(2)(b) provided to him, and the officer then began writing information down.

While the officer was writing information down, § 87(2)(b) exited his apartment and approached the officers yelling, "Who called you? Who called you?" § 87(2)(b) had a pencil and notepad in his hand and was pointing the pencil at the officer's face while standing less than a

foot away from the officers. § 87(2)(b) pointed to § 87(2)(b) and told the officers that he was the individual that was threatening him, warning the officers to keep their distance. One of the officers told § 87(2)(b) to stand back twice, but § 87(2)(b) did not comply with this command and continued to yell. An officer then ordered § 87(2)(b) to turn around, and simultaneously grabbed § 87(2)(b)'s arm and walked him to a garage door. § 87(2)(b) was ordered to place his hands on the garage door. § 87(2)(b) then facing the garage, placed his palms above his head against the garage. § 87(2)(b) began following behind § 87(2)(b) and the officers, but one of the officers ordered him to stand back. § 87(2)(b) then turned around and walked with his dog back a few feet.

§ 87(2)(b) then turned around again and saw a wallet (approximately three inches thick) and some other smaller items on the ground. Upon further questioning, § 87(2)(b) added that he saw the outline of § 87(2)(b)'s wallet in his front right pocket when § 87(2)(b) first approached the officers. One of the officers asked § 87(2)(b) if he wanted to file the complaint for harassment against § 87(2)(b) and § 87(2)(b) stated that he did. The officer told him that he was free to leave, and § 87(2)(b) left. § 87(2)(b) was still against the garage door when § 87(2)(b) walked away.

NYPD Statements:

Subject Officer: PO CHINTANKUM PATEL

- PO Patel was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b) Asian man with black hair and brown eyes.
- On the date of this incident, PO Patel was assigned to work 7:05 a.m. to 3:40 p.m., patrolling sectors D and E, within the confines of the 112th Precinct, with PO Persaud in a marked sedan (RMP #3421).

Memo Book:

"11:40: 1010 @ § 87(2)(b). 12:35- 96x1 93Q" (encl. 7D-F)

NYPD Complaint Report for § 87(2)(b)

PO Patel was listed as the reporting/investigating officer of the UF-61 that lists § 87(2)(b) as the wanted suspect, and § 87(2)(b) as the victim. The listed offense is § 87(2)(b)

Narrative: "At T.P.O C/V states that he was walking his dog at location when he was approached by suspect in a threatening manner. C/V further states that suspect did begin to yell, scream, and motion at C/V in a threatening manner about walking his dog in the area. C/V states he is fearful for his safety while walking his dog." (encl. 7A-C)

CCRB Statement:

PO Patel appeared at the CCRB on August 8, 2014, and provided the following statement (encl. 7G).

On the date of the incident PO Patel received a radio run for a crime in progress, menacing with a hammer. When he and PO Persaud arrived at § 87(2)(b), he did not see anyone with a hammer. After about one minute, a Hispanic man with a leashed dog, determined by the investigation to be § 87(2)(b) approached the officers and started complaining about the super of the building, § 87(2)(b) § 87(2)(b) stated that every time he walks his dog in this

area, § 87(2)(b) comes outside, threatens him with the hammer, and tells him to not come near his property. PO Persaud asked for the § 87(2)(b)'s identification and began writing down information for a NYPD complaint report (UF-61). At the same time, PO Patel began writing a parking summons for a van on four cinderblocks that was blocking the sidewalk at the same location.

While PO Persaud and PO Patel were writing the summons and report, § 87(2)(b) appeared and approached PO Patel and PO Persaud very quickly with a pencil and paper in hand. While standing less than a foot away from them, § 87(2)(b) pointed the pencil at their faces and demanded their names and shield numbers. PO Patel stated, "Please, step back sir, when I'm finished with the summons, I'll talk to you." § 87(2)(b) did not comply with PO Patel's orders to step back and continued to yell and point at the officers saying, "Who called you? Why are you here? What are you doing on my property?" At that point, § 87(2)(b) then pointed to § 87(2)(b) and stated that he was the individual that threatened him with a hammer. PO Patel also noticed a large bulge in § 87(2)(b)'s front right shorts pocket. PO Patel thought it may be a knife or a small hammer, but also stated to the CCRB that it could have been any number of weapons, as § 87(2)(b)'s shorts were loose fitting and baggy. As § 87(2)(b) continued to yell he was gesturing and pointing very suddenly and quickly, which caused PO Patel to fear for his safety because of the short distance between himself and § 87(2)(b). PO Patel stated in his CCRB interview, "I didn't know if the next [motion] was going to be at my face." As a result, PO Patel grabbed § 87(2)(b) by the arm, spun him around and walked him to a garage door.

PO Patel then frisked § 87(2)(b)'s shorts pockets, specifically the pocket where the bulge was as well as other smaller but still significantly large bulges. PO Patel stated that the largest bulge that he felt was a hard object. PO Patel then asked § 87(2)(b) to remove the item in his pocket, and discovered it to be a thick wallet (approximately three inches thick). PO Patel told § 87(2)(b) to remove everything from his pockets, and § 87(2)(b) complied. PO Patel observed § 87(2)(b) then remove a large set of keys, more than 20 keys on several interconnected key chains. PO Patel did not recall if PO Persaud made physical contact with § 87(2)(b) at any point during this incident. PO Patel did not arrest § 87(2)(b) for menacing with a hammer because he and PO Persaud did not witness the crime. § 87(2)(b) was then released. PO Patel denied throwing § 87(2)(b)'s wallet on the ground, stating that he handed § 87(2)(b)'s wallet back to him. A Stop Question and Frisk Report was completed, and the complaint report was also completed for § 87(2)(b)'s complaint.

Subject Officer: PO DEWAN PERSAUD

- PO Persaud was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b) Asian man with short black hair and brown eyes.
- On the date of this incident, PO Persaud worked from 7:05 a.m. to 3:40 p.m. patrolling sectors D and E with PO Patel, in uniform, and a marked sedan (RMP #3421)

Memo Book:

"12:36 p.m.- § 87(2)(b) 05/16/55 § 87(2)(b) /white/brown/med § 87(2)(b) - C/V indicates suspect is carrying hammer/ suspicious bulge in shorts- does not follow instructions SPRINT# § 87(2)(b)-250 C/V- § 87(2)(b) (encl. 8C-E)

Stop, Question, and Frisk Report for § 87(2)(b)

PO Persaud's report indicates that he suspected § 87(2)(b) of "menacing," and noted "suspicious bulge" as the circumstance that led to the stop. PO Persaud also noted that hands

were placed on the suspect and the suspect was placed against a wall. PO Persaud checked “refusal to comply with officers’ directions leading to reasonable fear for safety,” and “Suspicious Bulge/Object,” as reasons for a frisk. PO Persaud checked off “Hard Object” as the reason for a search, and noted that no contraband was found. PO Persaud noted “Report from Victim/Witness” and “Proximity to Crime Location” as Additional Circumstances/Factors. (encl. 8A-B)

CCRB Statement:

PO Persaud appeared at the CCRB on October 7, 2014 and provided the following statement (encl. 8F-G). § 87(2)(g)

PO Persaud responded to an assignment for an unleashed dog at the incident location. § 87(2)(b) § 87(2)(b) approached and told the officers that § 87(2)(b) was harassing him and threatening him with a hammer.

PO Persaud recalled there being a bulge in § 87(2)(b) s pocket, but did not recall what the bulge looked like other than it was large. PO Persaud stated that he believed, based on what § 87(2)(b) § 87(2)(b) told him about § 87(2)(b) the bulge could have been the head of a hammer. It was later discovered that the bulge was created by § 87(2)(b) s wallet. PO Persaud did not recall if it was he or PO Patel that frisked § 87(2)(b) entered § 87(2)(b) s pockets, or asked § 87(2)(b) § 87(2)(b) to remove any items from his pockets. PO Patel did not recall making any physical contact with § 87(2)(b) and did not recall how § 87(2)(b) was given his wallet back.

NYPD Documents

Roll Call

- The tour two Roll Call for June 20, 2014 confirms that PO Patel and PO Persaud were working at the time of this incident (encl. 9A-J).

Event Summary and Chronology § 87(2)(b)

- The Event Summary and chronology for this interaction indicates that a 911 call was made by the same number § 87(2)(b) provided as his mobile number to the CCRB at 1:31 p.m. The assignment was marked as Investigate/possible crime: Serious- “2 dogs running loose trying to attack people both dogs white in color.” Sector E (PO Persaud and PO Patel) of 112th Precinct arrived at the location at 1:45 p.m. and a disposition was placed at 1:49 p.m. as a report completed (encl. 10A-E).

Status of Civil Proceedings

- As of November 14, 2014, the New York City’s Comptroller’s office indicates that § 87(2)(b) § 87(2)(b) has not filed a notice of claim with the City of New York in regards to this incident.

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- § 87(2)(b) has filed nine complaints with the CCRB: § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Subject Officers CCRB History

- PO Patel has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 2A).
- PO Persaud has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 2B).

Conclusion

Identification of Subject Officers

PO Persaud and PO Patel both admitted to interacting with § 87(2)(b) and obtaining information from § 87(2)(b) leading to the stop of § 87(2)(b). § 87(2)(b) stated that PO Patel searched him, and PO Patel also admitted to doing so. § 87(2)(g)

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation A- Abuse of Authority- PO Dewan Persaud stopped § 87(2)(b)

Allegation B- Abuse of Authority- PO Chintankum Patel stopped § 87(2)(b)

It is undisputed that PO Patel and PO Persaud stopped § 87(2)(b). § 87(2)(g)
§ 87(2)(b) stated that he had simply been asking for the officers' names and shield numbers when PO Patel suddenly grabbed him and placed him against a garage door. According to the officers, § 87(2)(b) was nearby and identified § 87(2)(b) as the perpetrator of harassment and menacing with a hammer in previous instances and in the moments prior to the officers arriving. § 87(2)(b) corroborated the officers' account, that § 87(2)(b) had menaced him with a hammer, and that information was directly relayed to the officers prior to the stop of § 87(2)(b).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

To stop an individual, the police must have reasonable suspicion that a crime has been committed, is being committed, or is about to be committed. *People v. DeBour* 40 N.Y.2d 210 (1976) (encl. 1H-S)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A** and **B** be closed as **exonerated**.

Allegation C- Abuse of Authority PO Chintankum Patel searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) was positively identified by § 87(2)(b) in the presence of PO Patel and PO Persaud, as being the perpetrator of menacing with a hammer. It is undisputed that § 87(2)(b) was placed against a garage door and all of his pockets were searched revealing no evidence of a crime, though § 87(2)(b)'s wallet created a significant bulge in his front right shorts pocket. After the search was conducted, § 87(2)(b) was released without an arrest or summons issued.

§ 87(2)(g)

According to § 87(2)(b) as he approached the officers, he was immediately placed against the garage door. According to both officers as well as § 87(2)(b) § 87(2)(b) approached both PO Persaud and PO Patel in a loud and aggressive manner, causing an officer to grab § 87(2)(b) and place him against the garage. § 87(2)(g)

According to § 87(2)(b) PO Patel entered § 87(2)(b)'s pockets and dropped all of the items within on the ground. According to PO Patel, he frisked § 87(2)(b)'s pockets, asked § 87(2)(b) to empty one significantly bulging pocket (with § 87(2)(b)'s wallet), then directed § 87(2)(b) to empty the rest of his pockets, with which § 87(2)(b) complied.

A victim's positive identification of an individual as the perpetrator of a crime provides an officer with probable cause to arrest that individual (see CPL §140.10(1)(b) (encl. 1E); *People v. Mais* 71 AD3d 1163, 1165-1166 (2nd Dept. 2010) (encl. 1F-G)).

In order to justify a frisk of an individual, an officer must harbor reasonable suspicion that the person is armed and dangerous. *Arizona v. Johnson* 555 U.S. 323 (2009) (encl.1T-AA). Where a visual observation or a limited protective frisk of a subject reveals a bulge, that bulge must look or feel like a weapon before the officer is entitled to subject him to a further more intrusive search. *People v. Clark* 213 A.D.2d 946 (3rd Dept. 1995) (encl. 1AE-AF)

The existence of probable cause to arrest, without a contemporaneous arrest, does not justify a warrantless full body search of a defendant. *People v. Evans* 43 N.Y.2d 160 (Ct. App. of N.Y. 1977) (encl. 1A-D) The search incident to arrest exception is a "bright-line rule" inapplicable to cases that fall outside that line. *People v. Reid* 2014 Slip Op 08759 (Ct. App. of N.Y. 2014) (encl. 1AB-AD)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as *substantiated*.

Allegation D- Discourtesy- PO Chinkantum Patel acted rudely towards § 87(2)(b)

It is undisputed that a number of § 87(2)(b)'s items, including a large set of keys and paperwork, were emptied from his pockets and placed on the ground, and that his wallet was in PO Patel's possession at some point during the incident. § 87(2)(g)

§ 87(2)(b) stated that PO Patel emptied his pockets and dropped all of his items on the ground. PO Patel stated that § 87(2)(b) emptied his pockets and dropped the items on the ground. § 87(2)(b) stated that he did not witness the emptying of § 87(2)(b)'s pockets but confirmed that the items were on the ground. According to § 87(2)(b) PO Patel threw the wallet on the ground, amongst his other items and then ordered him to pick up the items. According to PO Patel, he handed § 87(2)(b)'s wallet back to § 87(2)(b) § 87(2)(b) stated that he left the scene before § 87(2)(b) was given his wallet back, and PO Persaud did not recall how § 87(2)(b) was given his wallet back.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as *unsubstantiated*.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date